

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Team # 1	CCRB Case #: 201405768	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/09/2014 9:00 PM	Location of Incident: 120th Precinct stationhouse	Precinct: 120	18 Mo. SOL 10/9/2015	EO SOL 10/9/2015	
Date/Time CV Reported Fri, 06/06/2014 1:49 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/11/2014 4:24 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jeanine Cutajar	19521	936415	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Nancy Heinz	13745	895355	120 PCT
2. POF Michelle Sharpe	15730	944292	120 PCT
3. SGT Julie Morawek	04374	926047	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Jeanine Cutajar	Discourtesy: PO Jeanine Cutajar spoke rudely to § 87(2)(b)	

Case Summary

On April 9, 2014, § 87(2)(b) was arrested after her sister reported that § 87(2)(b) assaulted her. § 87(2)(b) was transported to the 120th Precinct Stationhouse and placed into a holding cell. While in the holding cell § 87(2)(b) asked for toilet paper and for something to eat. PO Jeanine Cutajar, allegedly told § 87(2)(b) “Why the fuck should I cater to your needs? I am not going to deal with this shit” and told the officer relieving her, “Don’t give her shit.” **(Allegation A).** The next day, April 10, 2014, § 87(2)(b) was being escorted to court. PO Cutajar approached § 87(2)(b) and said, “I can make sure you don’t fucking go.” § 87(2)(b) was later led downstairs to be transported to court.

On December 23, 2014, this case was reassigned to Investigator Cooper after Investigator Vaillancourt’s departure from the agency.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation. On February 3, 2015, a FOIL request was sent to the New York City Comptroller’s Office and the status of a Notice of Claim for § 87(2)(b) is pending. (encl.8f) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- § 87(2)(b) has had one previous CCRB Complaint, § 87(2)(b)
- PO Cutajar has been a member of service for 10 years and she has had no substantiated allegations against her (encl. 2a).

Potential Issues

From the onset of her complaint, § 87(2)(b) identified the subject officer as PO Heinz who she described as a uniformed white female, approximately 5’3” tall, weighing approximately 160 pounds, with a petit build, approximately 46 years old, with dirty brown hair pulled back in a ponytail, and a with a wrinkled face. While § 87(2)(b)’s description of PO Heinz was accurate NYPD documentation established that PO Heinz was on sick leave during the week of § 87(2)(b) § 87(2)(b)’s arrest and therefore she did not interact with § 87(2)(b)

On March 3, 2015, § 87(2)(b) was provided with a photo-array at the CCRB. § 87(2)(b) identified PO Jeanine Cutajar as the subject officer. § 87(2)(b) also identified PO Nancy Heinz as the officer that possibly lodged her at the precinct or was present when came to retrieve her property (encl. 3l).

Findings and Recommendations

Explanation of Subject Officer Identification

As discussed in the potential issues section, during a photo array viewing, § 87(2)(b) identified PO Cutajar who is a white female, approximately 5’ tall, weighing 114 pounds, with brown hair

and brown eyes. PO Cutajar acknowledged being in charge of the prisoner holding cell at the time of § 87(2)(b)'s arrest. § 87(2)(g).

Allegation A- Discourtesy: Officers spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that she was arrested and taken to the 120th Precinct stationhouse. While § 87(2)(b) was inside the female holding cell area she requested food, and toilet paper from PO Cutajar. § 87(2)(b) alleged that PO Cutajar used the expletive “fuck” and “shit” while responding to her. She also alleged that on April 10, 2014, prior to being transported to Staten Island Criminal Court by an unidentified male officer, PO Cutajar used the expletive “fuck” while speaking to her (encl. 3f-3h).

PO Cutajar denied interacting with § 87(2)(b) on either dates, and also denied ever saying or hearing any officer use the aforementioned expletives (encl. 6h-6i).

The command log provided no additional information as to when § 87(2)(b) was transported to Staten Island Criminal Court or which officer transported her (encl. 7f). § 87(2)(g)

§ 87(2)(g)

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date